§ 228. Certain aliens admitted in excess of quotas permitted to remain.

CODIFICATION

Section, act June 7, 1924, ch. 379, 43 Stat. 669, omitted as expired as it related only to aliens who entered prior to July 1, 1924, under quota of 1921.

§§ 229—231, Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (17), (23), (27), 66 Stat. 279.

Section 229, acts May 19, 1921, ch. 8, 42 Stat. 5; May 26, 1924, ch. 190, § 30, 43 Stat. 169, related to the imposition and enforcement of penalties under May 19, 1921, and is not now covered.

Section 230, Joint Res. Oct. 16, 1918, ch. 190, 40 Stat. 1014, related to alien residents conscripted or volunteering for service during World War I, and is now covered by subchapter II of chapter 12 of this title.

Section 231, acts May 26, 1926, ch. 400, 44 Stat. 657; May 17, 1932, ch. 190, 47 Stat. 158, related to admission into Puerto Rico of certain resident Spanish subjects, and is now covered by subchapter II of chapter 12 of this title.

§§ 232—237. Omitted.

CODIFICATION

Sections, act Dec. 28, 1945, ch. 591, 59 Stat. 659, relating to admission of alien spouses and minor children of World War II veterans, omitted as expired three years after Dec. 28, 1945.

Section 237, act Dec. 28, 1945, ch. 591, § 6, added July 22, 1947, ch. 289, 61 Stat. 401.

§ 238. Prevention of transportation in foreign commerce of alien women and girls under international agreement; Commissioner designated as authority to receive and preserve information.

CODIFICATION

Section transferred to section 3421 of Title 5, Executive Departments and Government Officers and Employees.

§ 239. Admission of alien spouses and minor children of members of armed services.

CODIFICATION

Section, acts Aug. 19, 1950, ch. 759, 64 Stat. 464; Mar. 19, 1951, ch. 9, 65 Stat. 6, expired by its own terms on Mar. 19, 1952.

SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

§§ 241—246. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (28), 66 Stat. 279.

Sections, act May 26, 1926, ch. 398, §§ 1—6, 44 Stat. 654, 655, related to alien veterans of World War I, and are now covered by subchapter II of chapter 12 of this title.

Chapter 7.—EXCLUSION OF CHINESE

§ 261. Control of exclusion of Chinese.

CODIFICATION

Section, acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, conferred upon the Attorney General the authority, power, and jurisdiction by virtue of any law relating to the exclusion from and residence within the United States, its Territories and the District of Columbia, of Chinese and persons of Chinese descent, and vested in the collectors of customs and collectors of internal revenue, under control of the Commissioner of Immigration and Naturalization, as the Attorney General might designate therefor, the authority, power, and jurisdiction in relation to such exclusion previously vested in such officers. It is now obsolete in view of the repeal, by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, of sections 262—297 and 299 of this title.

§§ 262—297. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Sections, acts May 6, 1882, ch. 126, §§ 1, 3, 6—13, 15, 16, 22 Stat. 59—61; July 5, 1884, ch. 220, 23 Stat. 115—118; Sept. 13, 1888, ch. 1015, §§ 5—11, 13, 14, 25 Stat. 477—479; Oct. 1, 1888, ch. 1064, §§ 1, 2, 25 Stat. 504; May 5, 1892, ch. 60, §§ 1—3, 5—8, 27 Stat. 25, 26; Nov. 3, 1893, ch. 14, §§ 1, 2, 28 Stat. 7, 8; July 7, 1898, No. 55, § 1 (part), 30 Stat. 751; Apr. 30, 1900, ch. 339, § 101, 31 Stat. 161; June 6, 1900, ch. 791, § 1 (part), 31 Stat. 611; Mar. 3, 1901, ch. 845, §§ 1—3, 31 Stat. 1093; Apr. 29, 1902, ch. 641, §§ 1, 2, 4, 32 Stat. 176, 177; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428; Aug. 24, 1912, ch. 355, § 1 (part), 37 Stat. 476, related to the exclusion of Chinese and persons of Chinese descent from the United States or its Territories, and to various matters appertaining thereto, including the requirement of certificates of permission and identity by those who might be entitled to entry, exemptions, duties of masters of vessels and Federal officers, arrest, hearing and removal of Chinese unlawfully within the United States or its Territories, habeas corpus, and forfeitures and penalties for violation of the exclusion laws.

Acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 823; Res. Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933, and 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, formerly cited in credits to many of these sections, were not specifically repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, however, each related to departmental changes of administrative functions and depended for their efficacy upon the acts repealed by said act Dec. 17, 1943.

Act, Aug. 29, 1916, ch. 416, § 12, 39 Stat. 548, formerly cited in credit to section 297, was not specifically repealed by act Dec. 17, 1943, cited above; however it merely affected the original of the words "Philippine Legislature."

§ 298. Bertillon system of identification.

CODIFICATION

Section, acts Mar. 17, 1894, Art. III, 28 Stat. 1211; Apr. 28, 1904, ch. 1762, § 1, 33 Stat. 478, provided for the Bertillon system of identification at the various ports of entry, to prevent unlawful entry of Chinese into the United States. It is obsolete in view of the repeal of sections 262—297 of this title by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600. For some years prior to such act, no moneys had been appropriated to prevent unlawful entry of Chinese, referred to in this section.

§ 299. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Section, act June 23, 1913, ch. 3, § 1, 38 Stat. 65, provided for delivery by the marshal, of all Chinese persons ordered deported under judicial writs, into the custody of any officer designated for that purpose, for conveyance to the frontier or seaboard for deportation.

Chapter 8.—THE COOLY TRADE

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary emigration of "coolies" excepted.
336. Same; inquiry and certificate by consular officer.
337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

§ 331. Cooly trade prohibited.

No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor,

owner, or otherwise, build, equip, load, or otherwise prepare, any vessel, registered, enrolled, or licensed, in the United States, for the purpose of procuring from any port or place the subjects of China, Japan, or of any other oriental country, known as "coolies". to be transported to any foreign port, or place, to be disposed of, or sold, or transferred, for any time, as servants or apprentices, or to be held to service or labor. (R. S. § 2158.)

DERIVATION

Acts Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340; Feb. 9, 1869, ch. 24, 15 Stat. 269.

§ 332. Same; forfeiture of vessels.

If any vessel, belonging in whole or in part to a citizen of the United States, and registered, enrolled, or otherwise licensed therein, be employed in the "cooly trade", so called, contrary to the provisions of section 331 of this title, such vessel, her tackle, apparel, furniture, and other appurtenances, shall be forfeited to the United States, and shall be liable to be seized, prosecuted, and condemned in any of the district courts of the United States for the district where the vessel may be found, seized, or carried. (R. S. § 2159; Mar. 3, 1911, ch. 231, § 291, 36 Stat. 1167.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340.

§ 333. Building vessels to engage in cooly trade; penalty.

Every person who so builds, fits out, equips, loads, or otherwise prepares, or who sends to sea, or navigates, as owner, master, factor, agent, or otherwise, any vessel, belonging in whole or in part to a citizen of the United States, or registered, enrolled, or licensed within the same, knowing or intending that such vessel is to be or may be employed in that trade, contrary to the provisions of section 331 of this title, shall be liable to a fine not exceeding $2,000, and be imprisoned not exceeding one year. (R. S. § 2160.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 2, 12 Stat. 340.

§ 334. Punishment for engaging in cooly trade.

Every citizen of the United States who, contrary to the provisions of section 331 of this title, takes on board of any vessel, or receives or transports any such subjects as are described in that section, for the purpose of disposing of them in any way as therein prohibited, shall be liable to a fine not exceeding $2,000 and be imprisoned not exceeding one year. (R. S. § 2161.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 3, 12 Stat. 340.

§ 335. Voluntary emigration of "coolies" excepted.

Nothing contained in sections 135, 331—334, and 337 of this title shall be deemed to apply to any voluntary emigration of the subjects specified in section 331 of this title, or to any vessel carrying such person as passenger on board the same, but a certificate shall be prepared and signed by the consul or consular agent of the United States residing at the port from which such vessel may take her departure, containing the name of such person, and setting forth the fact of his voluntary emigration from such port, which certificate shall be given to the master of such vessel; and the same shall not be given until such consul or consular agent is first personally satisfied by evidence of the truth of the facts therein contained. (R. S. § 2162.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 4, 12 Stat. 341.

REFERENCES IN TEXT

Section 135 of this title, referred to in the text, was repealed by act June 27, 1952, ch. 477, title IV, § 403 (a) (1), 66 Stat. 279.

§ 336. Same; inquiry and certificate by consular officer.

In determining whether the immigration of any subject of China, Japan, or any oriental country, to the United States, is free and voluntary, as provided by section 335 of this title, it shall be the duty of the consul general or consul of the United States residing at the port from which it is proposed to convey such subjects, in any vessels enrolled or licensed in the United States, or any port within the same, before delivering to the masters of any such vessels the permit or certificate provided for in such section, to ascertain whether such immigrant has entered into a contract or agreement for a term of service within the United States, for lewd and immoral purposes; and if there be such contract or agreement, the said consul general or consul shall not deliver the required permit or certificate. (Mar. 3, 1875, ch. 141, § 1, 18 Stat. 477.)

§ 337. Examination of vessels.

The President is empowered, in such way and at such time as he may judge proper, to direct the vessels of the United States, and the masters and commanders thereof, to examine all vessels navigated or owned in whole or in part by citizens of the United States, and registered, enrolled, or licensed under the laws thereof, whenever in the judgment of such master or commanding officer, reasonable cause exists to believe that such vessel has on board any subjects of China, Japan, or other oriental country, known as "coolies"; and, upon sufficient proof that such vessel is employed in violation of the preceding provisions, to cause her to be carried, with her officers and crew, into any port or district within the United States, and delivered to the marshal of such district, to be held and disposed of according to law. (R. S. § 2163.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 6, 12 Stat. 341.

§ 338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.

If any citizen of the United States, or other person amenable to the laws of the United States, shall take, or cause to be taken or transported, to or from the United States any subject of China, Japan, or any oriental country, without their free and voluntary consent, for the purpose of holding them to a term of service, such citizen or other person shall be liable to be indicted therefor, and, on conviction of such offense, shall be punished by a fine not exceeding $2,000 and be imprisoned not exceeding one year; and all contracts and agreements for a term of

service of such persons in the United States, whether made in advance or in pursuance of such illegal importation, and whether such importation shall have been in American or other vessels, are hereby declared void. (Mar. 3, 1875, ch. 141, § 2, 18 Stat. 477.)

§ 339. Contracting to supply cooly labor.

If any person shall knowingly and willfully contract, or attempt to contract, in advance or in pursuance of such illegal importation, to supply to another the labor of cooly or other person brought into the United States in violation of section 331 of this title, or of any other section of the laws prohibiting the cooly trade, such person shall be deemed guilty of a felony, and, upon conviction thereof, in any United States court, shall be fined in a sum not exceeding $500 and imprisoned for a term not exceeding one year. (Mar. 3, 1875, ch. 141, § 4, 18 Stat. 477.)

CROSS REFERENCES

Felony classified as an offense punishable by death or imprisonment for a term exceeding one year, see section 1 of Title 18, Crimes and Criminal Procedure.

Chapter 9.—MISCELLANEOUS PROVISIONS

§§ 351—416. Repealed or transferred.

These sections, relating to naturalization, were in large degree affected by the Nationality Act of 1940, former section 501 et seq. of this title. That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation, and, in addition to certain specific repeals thereby, all acts or parts of acts in conflict with its provisions were repealed by former section 904 of this title. See notes below for history of individual sections.

Sections 351—354, relating to Bureau of Naturalization, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, 54 Stat. 1172. Sections 351–353 were from act June 29, 1906, ch. 3592, § 1, 34 Stat. 596, and section 354 was from act May 9, 1918, ch. 69, § 1, 40 Stat. 544. Similar provisions were contained in former section 727 of this title. Present provisions are contained in section 1443 of this title. See also section 342 et seq. of Title 5, Executive Departments and Government Officers and Employees, for general provisions relating to Immigration and Naturalization Service.

Section 355, relating to reports of expenditures of Bureau of Naturalization, was repealed by act May 29, 1928, ch. 901, § 1, 45 Stat. 994. It was from act Mar. 4, 1909, ch. 299, § 1, 35 Stat. 982.

Sections 356—358a were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 356, relating to regulations for execution of naturalization laws and use of copies of papers in evidence, was from acts June 29, 1906, ch. 3592, § 28, 34 Stat. 606, and Mar. 2, 1929, ch. 536, § 8, 45 Stat. 1515; similar provisions were contained in former section 727 of this title. Section 356a, relating to quarters for photographic studio in New York City, was from act May 25, 1932, ch. 203, § 9, 47 Stat. 166; similar provisions were contained in former section 727 (h) of this title; present provisions are contained in section 1443 (g) of this title. Sections 357 (from act June 29, 1906, ch. 3592, § 3, 34 Stat. 596, as amended Mar. 3, 1911, ch. 231, § 289, 36 Stat. 1167; June 25, 1936, ch. 804, 49 Stat. 1921), 358 (from act Mar. 2, 1917, ch. 145, § 41, 39 Stat. 965), and 358a (from act Feb. 25, 1927, ch. 192, § 4, 44 Stat. 1235), related to jurisdiction of naturalization courts; similar provisions were contained in former section 701 (a) of this title; present provisions are contained in section 1421 of this title.

Section 359, relating to racial limitation of naturalization, was from R. S. § 2169 (revised from act July 14, 1870, ch. 254, § 7, 16 Stat. 256), and acts Feb. 18, 1875, ch. 80, § 1, 18 Stat. 318; May 9, 1918, ch. 69, § 2, 40 Stat. 547. According to a communication of Jan. 8, 1943, the Immigration and Naturalization Service stated that it was the opinion of that office that said section 359 was superseded by former section 703 of this title. Present provisions are contained in section 1422 of this title.

Section 360, relating to admission of persons not citizens owing permanent allegiance to the United States, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, 54 Stat. 1172. It was from act June 29, 1906, ch. 3592, § 30, 34 Stat. 606. Similar provisions were contained in former section 721 of this title. Present provisions are contained in section 1436 of this title.

Section 361, relating to period of residence required for citizenship, was repealed by act Mar. 2, 1929, ch. 536, 45 Stat. 1514. It was from R. S. § 2170, which was revised from act Mar. 3, 1813, ch. 42, § 12, 2 Stat. 811. Similar provisions were contained in former section 707 of this title. Present provisions concerning period of residence are contained in section 1427 of this title.

Section 362, forbidding naturalization of citizens within thirty days preceding a general election, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. It was from act June 29, 1906, ch. 3592, § 6, 34 Stat. 598. Similar provisions were contained in former section 734 (c) of this title. Present provisions are contained in section 1447 (c) of this title.

Section 363, making Chinese inadmissible to citizenship, was repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600. It was from act May 6, 1882, ch. 126, § 14, 22 Stat. 61.

Sections 364—366a, relating to persons inadmissible to citizenship, were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Sections 364 and 365 were from act June 29, 1906, ch. 3592, §§ 7, 8, respectively, 34 Stat. 598, 599; similar provisions were contained in former sections 705 and 704, respectively, of this title; present provisions are contained in sections 1424 and 1423, respectively, of this title. Section 366 was from acts May 18, 1917, ch. 15, § 2, 40 Stat. 77; July 9, 1918, ch. 143, § 4, 40 Stat. 885. Section 366a was from act Feb. 11, 1931, ch. 118, 46 Stat. 1087.

Sections 367—368a, relating to naturalization of women, were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. They were from act Sept. 22, 1922, ch. 411, §§ 1, 2, 3 (c), respectively, 42 Stat. 1021, 1022, as amended Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511; May 17, 1932, ch. 190, 47 Stat. 158; May 24, 1934, ch. 344, § 4, 48 Stat. 797. Similar provisions on the subject of former section 367 were contained in former section 702 of this title; and on the subject of 368, in former sections 710, 711, 712 of this title.

Section 368b, relating to citizenship of women born in Hawaii prior to June 14, 1900, was repealed by act June 27, 1952, ch. 477, title IV, § 403 (a) (34), 66 Stat. 280. It was from acts July 2, 1932, ch. 395, 47 Stat. 571; July 1, 1940, ch. 495, 54 Stat. 707.

Sections 369 and 369a, relating to naturalization of women, were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. They were from act Sept. 22, 1922, ch. 411, §§ 4, 3 (b), respectively, 42 Stat. 1022, as amended July 3, 1930, ch. 835, § 2 (a), 46 Stat. 854; Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511. Similar provisions were contained in former section 717 (a) of this title. Present provisions are contained in section 1435 (a) of this title.

Section 370, relating to naturalization of women married to aliens ineligible to citizenship, was repealed by act Mar. 3, 1931, ch. 442, § 4 (b), 46 Stat. 1512. It was from act Sept. 22, 1922, ch. 411, § 5, 42 Stat. 1022.

Section 371, relating to naturalization of wives and children of aliens becoming insane after declaration of intention to become citizens, was repealed by act May 24, 1934, ch. 344, § 5, 48 Stat. 798, which provided that such repeal should "not affect any right or privilege or terminate any citizenship acquired under" the section before its repeal. Section was from act Feb. 24, 1911, ch. 151, 36 Stat. 929.

Sections 372—373 were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 372, relating to procedure for naturalization, was from act